



US Department of Agriculture (USDA)

Project: Frazier Mt. Road Paving

Solicitation 127EAW26Q0018

CONTRACT ADMINISTRATION DATA

INVOICES & PAYMENTS

All invoices are to be submitted via the electronic Invoice Processing Platform (IPP) System. The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). The contractor must follow the instructions on how to register and submit invoices via IPP as prescribed in previous communications from USDA and Treasury.

This is a mandatory requirement initiated by the U.S. Department of Treasury and you can find more information at this website <https://www.ipp.gov/index.htm>. Ensure your company has registered at <https://www.ipp.gov/vendors/enrollment-vendors.htm> to establish your account. Offeror **must have an established account prior to commencement of work.**

Invoice Processing Platform (IPP) does not allow for the contractor to change the description of the line items being invoiced against and therefore an itemized invoice must be uploaded as an attachment(s).

Itemized invoice shall include at a minimum:

Contractor Name & Address
Contract or Purchase Order numbers
Invoice Number
Description of Services or work completed
Date of services or completion.

CONTRACT ADMINISTRATION DATA

1. Contract Award. A written award or acceptance of offer mailed or otherwise furnished to the Contractor shall result in a binding contract without further action by either party.
2. Notice to Proceed. The Contractor shall commence work upon receipt of a properly executed Notice to Proceed.
3. Changes. The Contracting Officer is the only person authorized to approve changes in any of the requirements under this contract and notwithstanding any provisions contained elsewhere in this contract the said authority remains solely with the Contracting Officer. In the event the Contractor effects any such change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof.
4. Unauthorized Instructions from Government or Other Personnel. The Contractor shall not accept instructions issued by any person employed by the U.S. Government or otherwise other than the Contracting Officer, or the authorized representative of the Contracting Officer acting within the limits of his/her authority.
5. Designation of Contracting Officer's Representative (COR). Designation will be made upon contract award and a copy of the designation letters will be furnished to the Contractor. Limits of authority are described in each designation letter.
6. Designation of Authorized Representative of the Contractor. The Contractor shall assign a

member or employee who will act as Project Manager during the course of this contract or during the course of this project. The official shall be responsible for affording liaison between the contract forces and the contracting offices. This designation shall be in writing and a copy furnished to the Contracting Officer.

SPECIAL REQUIREMENTS

Post Award Conference

A post award conference with the successful offeror is required. It will be scheduled and held within **10** days after the date of contract award. The conference will be held **virtually via a Government led TEAMS meeting.**

Key Personnel

(The Contractor shall assign to this contract the following key personnel:

- i. Project Manager
- ii. Project Superintendent
- iii. Quality Control Manager
- iv. Project Safety Manager
- v. After-Hours Emergency Contact
- vi. Signature Authority for Contract Mod

Utility Services

The contractor is responsible for water, electricity, and restrooms.

Telephone

Due to the potential for work in remote and/or isolated areas, cell phone or wireless access may or may not be available at the site.

Loss, Damage or Destruction

Equipment Furnished with Operator. The Government shall not be liable for loss, damage, or destruction of equipment furnished under this contract except for such loss, damage, or destruction resulting from the negligent or wrongful act(s) of Government employee(s) while acting within the scope of their employment.

Other. Even though this contract may provide for performing services at the direction of Government personnel, the contract is not for personal services, and neither the Contractor nor their personnel are Government employees. The Government assumes no liability for injury occurring to Contractor personnel or to third parties, or for loss, damage, or destruction involving third parties' property as a result of the Contractor's operation. Except that the Government is liable for such loss, damage, or destruction resulting from the negligent or wrongful act(s) of Government employee(s) acting within the scope of their employment.

Archaeological and Historic Sites

Location of known archaeological, historic, or pre-historic materials--such as Amerind artifacts and/or historic mining, logging, or fur trapping remains protected by the American Antiquities Act (16 USC 433)--will be identified for the contractor before work commences.

Spill Plan

If the total oil or oil products storage exceeds 1,320 gallons or if any single container exceeds a capacity of 660 gallons, the Contractor shall prepare and implement a Spill Prevention and Countermeasures (SPCC) Plan. Such plan shall meet applicable EPA requirements (40 CFR 112), including certification by a registered professional engineer. The Contractor under the direction of the Contracting Officer, or in the absence of said officer, acting independently, shall immediately take action to contain and clean up, without expense to the Government, all petroleum products spills on or in the vicinity of the project which are caused by the Contractor's employees directly or indirectly as a result of contract operations. The Contractor may be held liable for all damages and costs of additional labor, subsistence, equipment, supplies, and transportation deemed necessary by the Government for the containment and clean up of petroleum products spills caused by Contractor's employees or resulting from contract operations. The Contractor shall immediately report all petroleum products spills to the Contracting Officer.

Site Security

Contractor is responsible for the Contractor's equipment and materials supplied to the site. All equipment not equipped with a key lock system shall be secured in such a manner as to make it inoperable to the average person at the end of each working day. All hand tools and other equipment shall be secured at the end of each working day. On Fridays all construction debris, trash, and refuse shall be properly stored in dumpsters or trash bins or removed from the site.

Adverse Weather

When the Contracting Officer or Contracting Officer's Representative (COR) determines that adverse weather has made access too dangerous or that continued vehicular travel would cause unacceptable damage. Work may be suspended.

Storage

The contractor's material and equipment storage site shall be determined at the pre-work meeting. The area shall be kept clean and free of litter. Roadway and suitable areas adjacent to the site may be utilized for temporary stockpiling of materials as approved by the CO. The Contractor shall confine all operations (including storage of materials) on Government premises to areas authorized or approved by the Contracting Officer. The Government is not responsible for loss of or damage to materials or supplies stored on-site during performance of this contract

Barricades, Warning Signs, and Other Devices

The Contractor shall provide, erect, and maintain all necessary barricades, suitable and sufficient lights, danger signals, signs, and other traffic control devices, and shall take all necessary precautions for the protection of the work and safety of the public. Roads closed to traffic shall be protected by effective barricades, and obstructions shall be illuminated during the hours of darkness. Suitable warning signs shall be provided to properly control and direct traffic.

The Contractor shall erect warning signs in advance to any place on the project where operations may interfere with the use of the road or trail by traffic and at all intermediate points where the new work crosses or coincides with an existing road or trail. All road barricades, warning signs, lights, temporary signals, flagmen and pilot car operators and equipment, and other protective devices, except for special devices, shall conform with Part VI of the Manual on Uniform Traffic Control Devices for Streets and Highways, published by the Federal Highway Administration and applicable safety codes. Necessary warning signs and guards shall be posted during blasting operations to safeguard the public.

Prohibition Against the Use of Lead-Based Paint

Neither the Contractor nor any subcontractor performing under this contract shall use paints containing more than 0.06 of 1 percent lead by weight (calculated as lead metal) in the total nonvolatile content of the paint, or the equivalent measure of lead in the dried film of paint already applied, or both.

Control of Erosion, Sedimentation and Pollution

(a) Operations shall be scheduled and conducted to minimize erosion of soils and to prevent silting and muddying of streams, rivers, irrigation systems, and impoundments (lakes, reservoirs, etc.).

(b) Pollutants such as fuels, lubricants, bitumens, raw sewage, and other harmful materials shall not be discharged on the ground; into or nearby rivers, streams, or impoundments; or into natural or man-made channels. Wash water or waste from concrete or aggregate operations shall not be allowed to enter live streams prior to treatment by filtration, settling, or other means sufficient to reduce the sediment content to not more than that of the stream into which it is discharged.

(c) Mechanized equipment shall not be operated in flowing streams without written approval by the Contracting Officer.

Samples and Certificates

When required by the specifications or the Contracting Officer, samples, certificates, and test data shall be submitted after award of the contract, prepaid, in time for proper action by the Contracting Officer or his/her designated representative. Certificates and test data shall be submitted in triplicate to show compliance with materials and construction specified in the contract performance requirements.

Samples shall be submitted in duplicate by the Contractor, except as otherwise specified, to show compliance with the contract requirements. Materials or equipment for which samples, certifications or test data are required shall not be used in the work until approved in writing by the Contracting Officer.

Emergency Response, Fire Suppression, and Liability

The contractor shall be responsible for any fires started by their operations, and must cover the costs of fire suppression efforts. Additionally, the contractor may be liable for damages caused by such fires, with their level of responsibility varying based on whether the fire is classified as an "operations fire" (non-negligent) or a "negligent fire."

Superintendence by Contractor

In addition to Clause 52.236-6, the following applies: The name and the specific authorities of the foreman or superintendent must be designated in writing to the Contracting Officer. The Contractor may use his/her own prepared letterhead stationery or a "Designation of Contractor's Representative" form available from the Contracting Officer. If the Contractor or the designee is not present when work is being performed on the contract, a Suspend Work Order may be issued with contract time continuing to run. The Contractor shall have a person on-site that is fully conversant in the English language.